

26TRCV00604 26TRCV00604

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Case Number: 26TRCV00604 Hearing Date: September 8, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

D.J., an
individual

Plaintiff,

Case No.:

26TRCV00604

v.

[Tentative]

Granted

CLEAR

RECOVERY CENTER, LLC, a California limited liability company, doing business

as CLEAR BEHAVIORAL HEALTH; MJ RESOURCE MANAGEMENT LLC, a California limited

liability company; YBH ACQUISITION, LLC, a Delaware limited liability company doing business as YOUR BEHAVIORAL

HEALTH; SCOTT DOHREN, an individual; BASEL SHADFAN, an individual; MICHAEL

JOLY, an individual; MARTHA KOO, M.D., an individual; and DOES 1-50,

inclusive,

Defendants.

Hearing

Date: September 9, 2026

Moving Parties: Plaintiff D.J.

Responding Party: Defendants Clear Behavioral Health, MJ

Resource Management LLC, Your Behavioral Health, Michael Joly, and Martha Koo

HEARING: Motion For Leave to

Proceed Under Pseudonym and for a Protective Order

The Court considered the moving,
opposition, and reply papers.

RULING

The

Court grants the Motion for Leave to Proceed Under Pseudonym and for
a Protective Order.

BACKGROUND

On February 19, 2026,

Plaintiff D.J. filed the Complaint against Defendants Clear Recovery Center
LLC, Clear Behavioral Health, MJ Resource Management LLC, YBH Acquisition, LLC,
Your Behavioral Health, Scott Dohren, Basel Shadfan, Michael Joly, and Martha
Koo, alleging causes of action for hostile work environment, failure to
prevent, investigate, and remedy harassment, retaliation, failure to permit
inspection of personal records. Constructive wrongful termination, sexual
battery, sexual assault, battery, IIED, negligent hiring, supervision, and
retention, breach of the covenant of good faith and fair dealing, gender
violence, violation of the Ralph Civil Rights Act, and misclassification and
unpaid overtime wages.

On July 28, 2026,

Plaintiff filed the Motion for Leave to Proceed Under Pseudonym and for a

Protective Order.

On August 26, 2026,
Defendants filed the Opposition.

On September 1, 2026,
Plaintiff filed the Reply.

LEGAL STANDARD

Generally, the names of all parties to a civil action must be included in the complaint. (Code. Civ. Proc., § 422.40.) “Because of the inherently sensitive nature of some proceedings, statutes specifically allow for keeping certain parties’ identities confidential.” (Santa Ana Police Officers Assn. v. City of Santa Ana (2025) 109 Cal.App.5th 296, 306.) “Unless a statute specifically allows a plaintiff to sue under a pseudonym, a plaintiff must obtain court authorization in order to appear anonymously. (Id. at 306-307.)

A court may permit plaintiff to proceed under a fictitious name when exceptional circumstances justify protecting plaintiff’s true identity, including matters of a highly sensitive and personal nature (e.g., prior criminal history, HIV-positive status, victim of sexual assault) (Doe v. Sup.Ct. (Luster) (2011) 194 CA4th 750, 754.), a real danger of physical or mental harm to plaintiff or others or where the injury sought to be avoided by the complaint (e.g., invasion of plaintiff’s privacy) would be incurred by disclosure of plaintiff’s identity. (Doe v. Lincoln Unified School Dist. (2010) 188 Cal.App.4th 758, 767 (tenured teacher accused of being mentally unfit to teach allowed to sue as “Doe”).)

The test for whether a party can be permitted to use a pseudonym has also been termed the “overriding interest test”—the same used for sealing requests: “A party’s request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue, the court must bear in mind the critical importance of the public’s right to access judicial proceedings. Outside of cases where anonymity is expressly

permitted by statute, litigating by pseudonym should occur only in the rarest of circumstances.” (Department of Fair Employment & Housing v. Sup.Ct. (Cisco Systems, Inc. (2022) 82 Cal.App.5th 105, 111-112.)

“In determining the appropriate standard, we first note that here the identity of the employee seeking to proceed under a pseudonym is known to the defendant. Significant constitutional concerns would be implicated were it otherwise. But another important constitutional right is implicated when a party is allowed to proceed anonymously: the right of public access to court proceedings. Among the guarantees of the First Amendment to the United States Constitution is that court proceedings are open and public. Public access to court proceedings is essential to a functioning democracy. It promotes trust in the integrity of the court system, and it exposes abuses of judicial power to public scrutiny. The right of public access applies not only to criminal cases, but also to civil proceedings like this one. And the right to access court proceedings necessarily includes the right to know the identity of the parties.” (Department of Fair Employment and Housing v. Superior Court of Santa Clara County (2022) 82 Cal.App.5th 105, 110–111.)

DISCUSSION

Pseudonymity

Plaintiff argues that pseudonymity is justified here. Plaintiff contends that sexual assault claims are among the most sensitive matters before a court and that California courts have consistently permitted such plaintiffs to proceed under fictitious names. (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1042, fn. 1.) Plaintiff also argues that the case necessarily involves her confidential mental health diagnoses of PTSD, depression, and anxiety, which warrant anonymity, and her stigmatized history of substance dependency and recovery, which Defendants may use against her. Plaintiff states that she kept this information private and disclosed the abuse only in a confidential therapeutic setting, distinguishing a case in which a plaintiff sought anonymity after already disclosing her own identity. (Taus v. Loftus (2007) 40 Cal.4th 683.)

Plaintiff further argues that she faces a genuine and reasonable risk of retaliatory physical harm. Plaintiff states that Defendant Dohren threatened to kill her if she disclosed the abuse, a severe

and explicit threat made immediately after the first assault to ensure her silence. Plaintiff contends that a name on an internet-accessible filing becomes permanently searchable, that serious potential harm permits a plaintiff to proceed anonymously, and that the threat here is explicit rather than abstract. (*Starbucks Corp. v. Superior Court* (2008) 168 Cal.App.4th 1436, 1452.) Plaintiff adds that the threat silenced her for an extended period, that Defendant Dohren's continued contact after her resignation confirms the ongoing risk, and that she need only show a reasonable person would believe the threat might be carried out.

Plaintiff also contends that her heightened vulnerability supports pseudonymity, because Defendants deliberately provided her with drugs and alcohol to cause a relapse after more than three years of sobriety and used the resulting dependency to control her, and because her PTSD, depression, and anxiety, for which Defendant Clear's own Chief Medical Officer placed her on disability, make her acutely vulnerable to re-traumatization. Plaintiff contends that Defendants deliberately created this vulnerability and cannot credibly argue it should weigh against her.

Next, Plaintiff argues that Defendants will suffer no prejudice because they already know her identity, so anonymity does not intrude on their rights. Plaintiff contends that Defendants can conduct full discovery, motion practice, and trial without impediment, that the only burden is the routine task of redaction, and that any specific issue can be handled through targeted protective orders without unmasking her. Plaintiff argues that Defendants' opposition serves only to force her name into the public record, the retaliatory dynamic that justifies pseudonymity.

Plaintiff also argues that the public interest favors pseudonymity because the pseudonym conceals nothing of substance, as every allegation, claim, and ruling remains public and only her legal name is withheld. Plaintiff contends that denying anonymity would deter her and future plaintiffs from bringing claims against a state-regulated behavioral health facility or force them into private arbitration. Finally, Plaintiff argues that no less restrictive means suffices, because she asks only that her legal name be withheld while everything else remains public. Plaintiff contends that sealing the case would be far more restrictive and require specific findings of an overriding interest, and that arbitration would eliminate public access entirely, so a pseudonym is the least restrictive means by a significant margin. (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879.)

In opposition, Defendants argue that Plaintiff has not established the findings needed to overcome the public's right of access. Defendants acknowledge the sensitivity of the behavioral health facility, Plaintiff's mental health information, and her substance dependency history, but contend that a privacy interest does not answer whether disclosure of her identity will probably cause harm sufficient to overcome the constitutional right of access, which itself includes knowing who has invoked the judicial power of the State. Defendants add that a stipulated protective order already lets Plaintiff designate her medical, treatment, and assault details as confidential, so pseudonymity is unnecessary to protect the underlying facts, and thus she must instead show that linking her legal name to the lawsuit is substantially likely to cause harm. (Santa Ana Police Officers Assn, *supra*, 109 Cal.App.5th 296, 307.) Defendants note that Plaintiff filed her Complaint publicly on February 19, 2026, and concedes that only her legal name is withheld, so the question is whether associating that name with the existing public record creates a substantial probability of harm.

Defendants also argue that Plaintiff has not shown that disclosure of her identity creates a substantial probability of retaliatory harm. Defendants contend that Defendant Dohren, the alleged source of the 2023 death threat, already knows Plaintiff's identity, so disclosure does not increase the risk he will learn who she is. Defendants argue that Plaintiff identifies no third-party threat and no threatening conduct in 2025 or 2026, so her declaration shows only subjective fear rather than a present, substantial probability of retaliation.

"In cases where anonymity is requested to protect against retaliation, the trial court should consider the following factors: (1) the severity of the threatened harm; (2) the reasonableness of the movant's fears; and (3) the movant's particular vulnerability to such retaliation." (Roe v. Smith (2025) 116 Cal.App.5th 227, 240.) "In deciding the issue, the court must bear in mind the critical importance of the public's right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur only in the rarest of circumstances." (Ibid.)

Here, Plaintiff states that she fears for her safety because Defendant Dohren threatened to kill her if she ever disclosed the abuse she alleges. (D.J. Declaration ¶ 8.) Plaintiff also states that on

June 13, 2026, she received a text message on her personal cellular telephone from a telephone number she does not know that reads, “wow you’re a druggie homewrecker... It all makes sense now!! You were fucking Scott then he overdoses. You’re a great human being. You need God, sweetie.” (D.J. Supplemental Decl. ¶ 5.) While Plaintiff states that her fear of retaliation from Defendant Dohren justifies pseudonymity, as a named Defendant, Defendant Dohren has already been made aware of Plaintiff’s legal name. Plaintiff attempts to preempt this argument by stating in her supplemental declaration, “my fear is that if my legal name is placed on the public filings in this case, then anyone at all – including whoever sent me this message, and anyone that person chooses to tell – will be able to enter my name into a search engine and immediately retrieve a detailed account of my sexual assaults, my mental health diagnoses, my relapse, and the facility where I lived and worked.” (Supplemental Decl. ¶ 5.) The Court finds that this fear is reasonable given the prior threats of violence and anonymous threatening texts. Furthermore, the severity of the threatened harm is extremely high, and Defendant is particularly vulnerable given her long-term substance dependency and mental health diagnosis. Consequently, the Court finds that Plaintiff has shown an overriding interest in protection from retaliation. The Court also finds that this interest will be prejudiced if her name is attached to the instant case, which will contain a myriad of factual information, both sensitive and not, regarding her past substance abuse and living situation. Lastly, the Court finds that the protective order alone is insufficient to protect the overriding interest, as attaching her name to the case is itself a breach of that interest. Thus, the Court finds that Plaintiff is entitled to pursue her action pseudonymously.

Therefore, the Court grants the Motion
for Leave to Proceed Under Pseudonym and for a Protective Order in part.

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

D.J., an
individual

Plaintiff,

Case No.:

26TRCV00604

v.

[Tentative]

Sustained

CLEAR

RECOVERY CENTER, LLC, a California limited liability company, doing business as CLEAR BEHAVIORAL HEALTH; MJ RESOURCE MANAGEMENT LLC, a California limited liability company; YBH ACQUISITION, LLC, a Delaware limited liability company doing business as YOUR BEHAVIORAL HEALTH; SCOTT DOHREN, an individual; BASEL SHADFAN, an individual; MICHAEL JOLY, an individual; MARTHA KOO, M.D., an individual; and DOES 1-50, inclusive,

Defendants.

Hearing

Date: September 9, 2026

Moving Parties: Defendants Michael Joly and Martha Koo

Responding

Party: Plaintiff D.J.

HEARING: Demurrer

The Court considered the moving, opposition, and reply papers.

RULING

The Court

sustains the Demurrer as to the first, ninth, and thirteenth causes of action with leave to amend.

The Court sustains the
Demurrer as to the tenth cause of action without leave to amend.

BACKGROUND

On February 19, 2026,
Plaintiff D.J. filed the Complaint against Defendants Clear Recovery Center
LLC, Clear Behavioral Health, MJ Resource Management LLC, YBH Acquisition, LLC,
Your Behavioral Health, Scott Dohren, Basel Shadfan, Michael Joly, and Martha
Koo, alleging causes of action for hostile work environment, failure to
prevent, investigate, and remedy harassment, retaliation, failure to permit
inspection of personal records, constructive wrongful termination, sexual
battery, sexual assault, battery, IIED, negligent hiring, supervision, and
retention, breach of the covenant of good faith and fair dealing, gender
violence, violation of the Ralph Civil Rights Act, and misclassification and
unpaid overtime wages.

On June 1, 2026,
Defendants Michael
Joly and Martha Koo filed the demurrer.

On August 26, 2026, Plaintiff filed
the Opposition.

On September 1, 2026, Defendant
filed the Reply.

LEGAL STANDARD

A demurrer can be used only to challenge
defects that appear on the face of the pleading under attack or from matters
outside the pleading that are judicially noticeable. (Blank v. Kirwan
(1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only
allege facts sufficient to state a cause of action; each evidentiary fact that
might eventually form part of the plaintiff’s proof need not be alleged.” (C.A.
v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of
the cause of action, the demurrer admits the truth of all material facts

properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On May 4, 2026, the parties met telephonically regarding the Demurrer. Therefore, the Court finds that Defendants have satisfied the meet and confer requirements.

Defendants demur to the first, ninth, tenth, and thirteenth causes of action.

Plaintiff alleges that she was employed by Defendants Clear Recovery Center, LLC, MJ Resource Management LLC, and YBH Acquisition, LLC as joint employers. She alleges that her direct supervisors during her employment were Defendant Scott Dohren and Defendant Basel Shadfan.

Plaintiff alleges that Defendant Dohren and Defendant Shadfan sexually harassed and assaulted

her. As to Defendant Dohren, she alleges that he exchanged sexually explicit photos and videos with her and coerced her into a sexual relationship, that he coerced her into sexual intercourse and other sexual acts at a hotel on multiple occasions while she was under the influence of alcohol and drugs, that he threatened to kill her and himself if she disclosed the relationship, and that he coerced her into sexual intercourse at a vacant, not-yet-open company facility. As to Defendant Shadfan, Plaintiff alleges that he engaged in sexual intercourse with her at his home while she was severely intoxicated and incapacitated. Plaintiff also alleges that Defendant Dohren encouraged her to create an OnlyFans account as an additional form of income.

Plaintiff further

alleges that other employees were aware of a toxic work environment under Defendant Dohren and Defendant Shadfan. She alleges that Clear Behavioral Health's Chief Executive Officer, Defendant Michael Joly, had actual knowledge of Defendant Dohren's substance abuse relapse and had actual knowledge or should have known of Defendant Shadfan's relapse after another employee publicly accused Defendant Shadfan of relapsing. She also alleges that Clear Behavioral Health's Medical Director, Dr. Martha Koo, M.D., had actual knowledge that Plaintiff needed to leave her employment due to the toxic work environment and, on the day of Plaintiff's resignation, sent Plaintiff a text message encouraging her to resign, telling Plaintiff that she loved her lots and was hoping to hear she quit Friday. Plaintiff additionally alleges that coworkers, including individuals identified as Morgan, Max Miner, and Monica, shared concerns about Defendant Dohren's inappropriate communications with her and encouraged her to resign.

Plaintiff submitted

her resignation from Defendants Clear Behavioral Health and MJ Resource Management LLC on July 18, 2023, and her last day of employment was August 4, 2023.

Cause of Action 1 – Hostile Work Environment

“A hostile work

environment sexual harassment claim requires a plaintiff employee to show: (1) he or she was subjected to unwelcome sexual advances, conduct or comments; (2) the harassment was based on sex; and (3) the harassment was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment.” (Lewis v. City of Benicia (2014) 224

Cal.App.4th 1519, 1524.)

Defendants argue

that Plaintiff's first cause of action for hostile work environment sexual harassment under FEHA fails as to Defendant Joly and Defendant Koo because it attempts to convert allegations of awareness and inaction into personal liability. Defendants contend that California law draws a clear distinction between actionable harassment and management-related conduct, and that the allegations against Defendant Joly and Defendant Koo fall squarely within the latter category and therefore cannot support individual harassment liability. Defendants maintain that a plaintiff must plead more than bad personnel decisions to state a harassment claim, because personnel decisions are fundamentally different from the type of conduct that constitutes harassment. (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64.) Defendants further argue that mere knowledge that harassment is being committed, coupled with a failure to prevent it, does not create individual liability, and that a supervisor is not liable to third parties for subordinates' acts. (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1326.)

Defendants assert

that Plaintiff's allegations against Defendant Joly and Defendant Koo consist only of claims that they had actual knowledge of the hostile work environment through Defendant Joly's avoidance of Plaintiff's compensation discussions while Defendant Dohren pressured her toward sexual exploitation, Defendant Koo's encouragement that Plaintiff quit, and both executives' knowledge that Defendant Dohren arrived intoxicated during the merger visit. Defendants argue that these allegations of actual knowledge are insufficient to establish harassment. Defendants emphasize that Plaintiff nowhere alleges that Defendant Joly had actual knowledge of any sexual harassment itself. Defendants contend that these allegations amount to nothing more than personnel management decisions and cannot establish harassment.

In opposition,

Plaintiff argues that this is not a case about supervisors who simply looked the other way. Plaintiff states that Defendant Joly and Defendant Koo each took affirmative actions, and that their own conduct, not their silence, is what the Complaint targets. On that view, the cases Defendants lean on miss the mark. *Fiol* dealt only with a supervisor who failed to step in and stop harassment. (*Fiol*, *supra*. 50 Cal.App.4th 1318, 1320.) And *Janken* drew its line between ordinary personnel management and harassment, describing

harassment as conduct that falls outside the work a job actually requires, which Plaintiff says is exactly what she has alleged. (Janken, supra, 46 Cal.App.4th 55, 63.)

As for Defendant

Joly, Plaintiff describes a pattern of control rather than mere neglect. He kept a possessive grip on her interactions with coworkers, dodged her compensation meetings when Defendant Dohren was pushing her toward sexual exploitation, and did nothing after Defendant Dohren showed up intoxicated at the merger visit. As for Defendant Koo, Plaintiff points to his text urging her to quit on the same day she drafted her resignation letter, and the extra pay and personal loan that bound her more tightly to senior management,

Taken together,

Plaintiff argues, this was active participation that fostered and sustained the hostile work environment, not the passive inaction Defendants describe.

“Harassment

consists of a type of conduct not necessary for performance of a supervisory job. Instead, harassment consists of conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives.” (Janken, supra, 46 Cal.App.4th 55, 63.) “The exercise of personnel management authority properly delegated by an employer to a supervisory employee might result in discrimination, but not in harassment.” (Ibid.) “Making a personnel decision is conduct of a type fundamentally different from the type of conduct that constitutes harassment. Harassment claims are based on a type of conduct that is avoidable and unnecessary to job performance. No supervisory employee needs to use slurs or derogatory drawings, to physically interfere with freedom of movement, to engage in unwanted sexual advances, etc. in order to carry out the legitimate objectives of personnel management. Every supervisory employee can insulate himself or herself from claims of harassment by refraining from such conduct.” (Ibid.)

Here, the

allegations against Defendant Joly are that he recruited Plaintiff to work at Clear, delayed compensation meetings, and witnessed Defendant Dohren intoxicated at work. The allegations against Defendant Koo are that she helped Plaintiff resign, gave Plaintiff a personal loan, and placed Plaintiff on disability instead of investigating the

cause of the disability. However, these allegations are either personnel decisions, such as recruiting and helping Plaintiff resign, or non-hostile actions, such as giving Plaintiff a personal loan. Last, while the opposition focuses on paragraph 65 of the Complaint, Defendant Joly's statement was neither directed at Plaintiff nor sexual or gender-based. Consequently, the Court finds that Plaintiff has not alleged any conduct that would impose personal liability on Defendant Koo or Joly.

Therefore, the Court sustains the Demurrer as to the first cause of action with leave to amend.

Cause of Action 9 – IIED

To succeed on a cause of action for IIED, the plaintiff must prove outrageous conduct by the defendant that is the actual and proximate cause of the plaintiff's severe emotional distress. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

To state a cause of action for IIED, Plaintiff must plead "with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161.)

Defendants

argue that Plaintiff's ninth cause of action for IIED against Defendant Joly and Defendant Koo fails because the conduct attributed to them is neither extreme nor outrageous as a matter of law. Defendants argue that the core allegations of extreme conduct, including sexual harassment, sexual assault, providing drugs to facilitate assault, and coercing sexual compliance, are attributable solely to co-defendants Dohren and Shadfan, against whom the sexual battery, sexual assault, and battery claims are exclusively alleged. Defendants contend that the only conduct attributed to Defendant Joly and Defendant Koo is that Defendant Joly avoided compensation meetings, that Defendant Koo encouraged Plaintiff to resign, and that both failed to protect Plaintiff despite knowledge of the harassment.

In

opposition, Plaintiff argues that the Complaint pleads extreme and outrageous conduct sufficient to support intentional infliction of emotional distress against Defendant Joly and Defendant Koo.

Plaintiff

argues that, as senior executives of a facility meant to protect people in recovery, Defendant Joly and Defendant Koo knew that Defendant Dohren had arrived intoxicated at the facility, that Defendant Shadfan had been accused of relapsing, that Plaintiff was being financially exploited while pressured toward sexual exploitation, and that she needed to leave because of the toxic environment, yet took no corrective action. Plaintiff contends that Defendant Koo instead encouraged her to resign, deepened her financial dependency through a loan and added compensation, and placed her on disability without any investigation, while Defendant Joly participated in the possessive culture and avoided her additional compensation requests during the period she was being exploited.

“Managing

personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society. A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.” (Janken, *supra*, 46 Cal.App.4th 55, 80.)

Here, the actions

alleged against Defendants Koo and Joly, avoiding compensation meetings, encouraging a resignation, and failing to protect Plaintiff, are management conduct and inaction, which do not reach the level of acts so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Yau, *supra*, 229 Cal.App.4th 144, 161.) The core extreme allegations, the sexual misconduct, belong to Defendants Dohren and Shadfan, against whom the assault and battery claims are exclusively pled. Consequently, the Court finds that the Complaint fails to plead outrageous conduct as to Defendants Koo and Joly.

Therefore, the

Court sustains the Demurrer as to the ninth cause of action with leave to amend.

Cause of Action 10 – Negligent Hiring, Retention, and

Supervision

A

claim for negligent hiring, negligent retention, or negligent supervision is based upon the fact that the employer knew or should have known that hiring, retaining, or failing to supervise the employee created a particular risk or hazard and that particular harm materialized. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054; *Federico v. Superior Court* (1997) 59 Cal.App.4th 1207, 1213-1214.)

Defendants argue

that Plaintiff's tenth cause of action for negligent hiring, supervision, and retention against Defendant Joly and Defendant Koo fails because Plaintiff does not and cannot allege that either was her employer. Defendants argue that liability is imposed on the employer if it knew or should have known that hiring the employee created a particular risk and that particular harm materialized. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 817.) Defendants emphasize that this is a theory of direct liability for negligence rather than vicarious liability, so that only the employer, and not its individual employees or supervisors, may be held liable.

Defendants contend

that the California Supreme Court has reinforced this principle by holding that, absent a special relationship, there can be no individual liability to third parties for negligent hiring, retention, or supervision of a fellow employee, and hence no vicarious liability, a rule that applies equally to public and private entity defendants. (*C.A. v. William S. Hart Union High School District* (2012) 53 Cal.4th 861, 877.) Defendants contend that the only recognized special relationship sufficient to support individual liability in this context is that between school personnel and students, which arises from the mandatory character of school attendance and the comprehensive control exercised over students and is analogous to the relationship between parents and their children. Defendants argue that courts have not extended such a special relationship beyond that narrow custodial context. (*De Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 249.)

Defendants further

argue that Plaintiff's contentions that Defendant Joly and Defendant Koo are personally liable because of their alleged actual knowledge of misconduct, their participation in a possessive culture, and their failure to investigate Defendants

Dohren and Shadfan are irrelevant. Defendants maintain that neither was Plaintiff's employer, and that Plaintiff does not allege that either maintained a custodial or protective relationship analogous to a school-student relationship or any other recognized special relationship. Defendants therefore contend that Plaintiff's tenth cause of action for negligent hiring, supervision, and retention necessarily fails against Defendant Joly and Defendant Koo.

Plaintiff did not oppose
the Demurrer as to the tenth cause of action.

"Absent such a special relationship, there can be no individual liability to third parties for negligent hiring, retention or supervision of a fellow employee, and hence no vicarious liability under section 815.2 (or, for private organizations, under common law respondeat superior principles)." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 877.)

Here, Defendants Joly and Koo were not Plaintiff's employer and thus cannot be held liable for negligent hiring, negligent retention, or negligent supervision.

Therefore,
the Court sustains the Demurrer as to the tenth cause of action without leave to amend.

Cause of Action 13 – Violation of the Ralph Act

Defendants argue
that Plaintiff's thirteenth cause of action under the Ralph Civil Rights Act against Defendant Joly and Defendant Koo fails because the Complaint does not allege that either committed or threatened violence against Plaintiff, and instead rests on their awareness of others' misconduct and failure to act. Defendants contend that the statute requires that the defendant personally committed or threatened a violent act against the plaintiff for a substantial motivating reason tied to a protected characteristic. (Gabrielle A. v. County of Orange (2017) 10 Cal.5th 1268, 1291.)

Defendants contend
that the violence and threats alleged, including sexual battery, sexual

assault, drugging Plaintiff, and Defendant Dohren's death threat, are attributed exclusively to Defendants Dohren and Shadfan, and that the only allegation against Defendant Joly and Defendant Koo is that their negligent hiring, supervision, and retention were a substantial factor in Plaintiff's injuries. Defendants contend that negligent hiring, supervision, or retention is not violence or intimidation by threat of violence within the statute.

Defendants further argue that liability also fails under the aided, incited, or conspired prong because aiding and abetting requires substantial assistance or encouragement, and mere knowledge of a tort and a failure to prevent it are insufficient. Defendants add that the Complaint alleges no facts that Defendant Joly's or Defendant Koo's hiring or retention decisions were motivated by Plaintiff's sex or gender, which is independently fatal. (*Austin B. v. Escondido Union School District* (2007) 149 Cal.App.4th 860.) Defendants therefore contend that the thirteenth cause of action against Defendant Joly and Defendant Koo should be dismissed.

In opposition, Plaintiff argues that her thirteenth cause of action under the Ralph Civil Rights Act is adequately pleaded against Defendant Joly and Defendant Koo. Plaintiff contends that the statute reaches not only those who threaten or commit violence for a discriminatory motive but also those who aid, incite, or conspire in the denial of the protected right. Plaintiff argues that aiding and abetting attaches where a defendant knows the other's conduct is a breach of duty and gives substantial assistance or encouragement. (*Casey v. U.S. Bank National Assn.* (2005) 127 Cal.App.4th 1138, 1144.)

Plaintiff contends that the Complaint satisfies this standard because Defendant Joly and Defendant Koo took affirmative steps rather than merely knowing and doing nothing, including controlling her compensation and policing who spoke to her, withholding compensation discussions while Dohren pressured her toward sexual exploitation, extending a loan and side compensation that deepened her dependence, and encouraging her to resign rather than investigating her disability claim.

"Whoever denies the right provided by Section 51.7 or 51.9, or aids, incites, or conspires in that denial, is liable for each and every offense for the actual

damages suffered by any person denied that right.” (Civ. Code § 52 subd. (b).) “California courts have long held that liability for aiding and abetting depends on proof the defendant had actual knowledge of the specific primary wrong the defendant substantially assisted. In *Lomita Land Water Co. v. Robinson* (1908) 154 Cal. 36, 97 P. 10 (*Lomita*), the California Supreme Court explained this requirement in the course of affirming a judgment against two defendants for aiding and abetting a fraudulent land sale scheme engineered by two others. The court stated, ‘The words aid and abet as thus used have a well understood meaning, and may fairly be construed to imply an intentional participation with knowledge of the object to be attained.’ Finding the defendants had actual knowledge of all the facts relative to the scheme and knowingly assisted in its consummation, the court concluded they were rightly held liable for aiding and abetting the fraud.” (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1145-1146.)

Here, the Complaint fails to allege that Defendants Koo and Joly had actual knowledge of Defendants Dohren and Shadfan's acts, nor that they had intended to aid them.

Therefore,
the Court sustains the Demurrer as to the thirteenth cause of action with leave to amend.

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

D.J., an
individual

Plaintiff,

Case No.:

26TRCV00604

v.

[Tentative]

Overruled in part/sustained in part/denied

CLEAR

RECOVERY CENTER, LLC, a California limited liability company, doing business as CLEAR BEHAVIORAL HEALTH; MJ RESOURCE MANAGEMENT LLC, a California limited liability company; YBH ACQUISITION, LLC, a Delaware limited liability company doing business as YOUR BEHAVIORAL HEALTH; SCOTT DOHREN, an individual; BASEL SHADFAN, an individual; MICHAEL JOLY, an individual; MARTHA KOO, M.D., an individual; and DOES 1-50, inclusive,

Defendants.

Hearing

Date: September 9, 2026

Moving Parties: Defendant Basel Shadfan

Responding

Party: Plaintiff D.J.

HEARING: Demurrer with MTS

The Court considered the moving, opposition, and reply papers.

RULING

The Court overrules the Demurrer as to the first cause of action.

The Court sustains the Demurrer as to the fifth and eleventh causes of action without leave to amend.

The Court denies the Motion to Strike.

BACKGROUND

On February 19, 2026,
Plaintiff D.J. filed the Complaint against Defendants Clear Recovery Center LLC, Clear Behavioral Health, MJ Resource Management LLC, YBH Acquisition, LLC, Your Behavioral Health, Scott Dohren, Basel Shadfan, Michael Joly, and Martha Koo, alleging causes of action for hostile work environment, failure to prevent, investigate, and remedy harassment, retaliation, failure to permit inspection of personal records. Constructive wrongful termination, sexual battery, sexual assault, battery, IIED, negligent hiring, supervision, and retention, breach of the covenant of good faith and fair dealing, gender violence, violation of the Ralph Civil Rights Act, and misclassification and unpaid overtime wages.

On June 25, 2026,
Defendant Basel Shadfan filed the Demurrer and Motion to Strike.

On August 26, 2026,
Plaintiff filed the Opposition.

September 1, 2026,
Defendant filed the Reply.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On May 20, 2026, Defendant sent a meet and confer letter by email. Therefore, the Court finds that Defendants have satisfied the meet and confer requirements.

Defendants demur to the first, fifth, and eleventh causes of action.

Plaintiff alleges

that she was employed by Defendants Clear Recovery Center, LLC, MJ Resource Management LLC, and YBH Acquisition, LLC as joint employers. She alleges that her direct supervisors during her employment were Defendant Scott Dohren and Defendant Basel Shadfan.

Plaintiff alleges

that Defendant Dohren and Defendant Shadfan sexually harassed and assaulted her. As to Defendant Dohren, she alleges that he exchanged sexually explicit photos and videos with her and coerced her into a sexual relationship, that he coerced her into sexual intercourse and other sexual acts at a hotel on multiple occasions while she was under the influence of alcohol and drugs, that he threatened to kill her and himself if she disclosed the relationship, and

that he coerced her into sexual intercourse at a vacant, not-yet-open company facility. As to Defendant Shadfan, Plaintiff alleges that he engaged in sexual intercourse with her at his home while she was severely intoxicated and incapacitated. Plaintiff also alleges that Defendant Dohren encouraged her to create an OnlyFans account as an additional form of income.

Plaintiff further

alleges that other employees were aware of a toxic work environment under Defendant Dohren and Defendant Shadfan. She alleges that Clear Behavioral Health's Chief Executive Officer, Defendant Michael Joly, had actual knowledge of Defendant Dohren's substance abuse relapse through an incident in the parking lot, and had actual knowledge or should have known of Defendant Shadfan's relapse after another employee publicly accused Defendant Shadfan of relapsing. She also alleges that Clear Behavioral Health's Medical Director, Dr. Martha Koo, M.D., had actual knowledge that Plaintiff needed to leave her employment due to the toxic work environment and, on the day of Plaintiff's resignation, sent Plaintiff a text message encouraging her to resign, telling Plaintiff that she loved her lots and was hoping to hear she quit Friday. Plaintiff additionally alleges that coworkers, including individuals identified as Morgan, Max Miner, and Monica, shared concerns about Defendant Dohren's inappropriate communications with her and encouraged her to resign.

Plaintiff submitted

her resignation from Defendants Clear Behavioral Health and MJ Resource Management LLC on July 18, 2023, and her last day of employment was August 4, 2023.

Cause of Action 1 – Hostile Work Environment

“A hostile work

environment sexual harassment claim requires a plaintiff employee to show: (1) he or she was subjected to unwelcome sexual advances, conduct or comments; (2) the harassment was based on sex; and (3) the harassment was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment.” (Lewis v. City of Benicia (2014) 224 Cal.App.4th 1519, 1524.)

Defendant Shadfan

contends that Plaintiff's first cause of action for hostile work environment sexual harassment under the Fair Employment and Housing Act fails because the

conduct alleged was not related to Plaintiff's employment. Defendant emphasizes that the goal of FEHA is to prevent workplace harassment, and that harassing conduct occurring off the worksite or after working hours is actionable only if it occurs in a work-related context. (Atalla v. Rite Aid Corp. (2023) 89 Cal.App.5th 294, 309.) Defendant argues that the allegations describe a personal, private relationship rather than an employment relationship. Defendant notes that Plaintiff served as a Compliance Coordinator for Defendant CLEAR, a substance abuse rehabilitation center, and that her relationship with Defendant Shadfan predated her employment. Defendant points to allegations that Defendant Shadfan invited Plaintiff to a club where she consumed alcohol and mushrooms, that in July 2023 the parties used drugs and engaged in relations at Defendant Shadfan's home, that Plaintiff traveled with him to Mexico, and that Plaintiff later lived with Defendant Shadfan. Defendant argues that none of this conduct is work-related and that it is not actionable simply because both parties worked for CLEAR.

Defendant argues that the governing case law confirms Defendant Shadfan cannot be held liable. In Capitol City Foods, the court held that a supervisor's off-site sexual assault of an employee was not subject to the FEHA because the supervisor had not abused his supervisory position to coerce the contact, the employee agreed to accompany him, and nothing indicated coercion. (Capitol City Foods, Inc. v. Superior Court (1992) 5 Cal.App.4th 1042, 1048-1050.) In Atalla, the court held that a supervisor's explicit texts sent during nonworking hours were not sufficiently work-related, reasoning that the personal relationship predated the plaintiff's employment, that she was a willing participant, and that the relationship was not undertaken for the employer's benefit. (Atalla, supra, 89 Cal.App.5th 294, 313-316.) Defendant contends that Plaintiff's involvement here far exceeded the conduct in both cases, because she socialized in person with Defendant Shadfan, traveled to Mexico, and moved in with him. Defendant further argues that the mere fact the parties worked together does not make his conduct work-related. (Fuller v. Idaho Dept. of Corrections (9th Cir. 2017) 865 F.3d 1154, 1162, fn. 7.) Defendant concludes that the private, social nature of the relationship before and after employment is so explicitly pled that amendment would be futile, and that the demurrer to the first cause of action must be sustained without leave to amend.

In opposition, Plaintiff contends that the Complaint states sufficient facts to establish a hostile work

environment sexual harassment claim under FEHA. Plaintiff notes that harassment need not occur within the physical workplace but argues that it is actionable where it is in some fashion work-related. (Capitol City Foods, supra, 5 Cal.App.4th 1042, 1048.) Plaintiff argues that Defendant Shadfan is personally liable for harassment he perpetrated whether or not he was Plaintiff's employer, because an employee is personally liable for harassment he commits and no loss of a tangible job benefit is required. (Gov. Code, § 12940, subds. (j)(1), (j)(3).)

Plaintiff argues

that the authorities Defendant Shadfan relies on were resolved on developed evidentiary records rather than on the pleadings, and that on demurrer the Court accepts the allegations as pleaded rather than weighing Defendant Shadfan's competing account. (Capitol City Foods, Inc., supra, 5 Cal.App.4th 1042, 1049-1050.) Plaintiff argues that Doe v. Capital Cities is the closest authority because it was decided on demurrer and held that a plaintiff's presence at the harasser's home was a sufficient nexus for pleading purposes. (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1048, 1051.) Plaintiff argues the nexus here is stronger because Defendant Shadfan was one of her two direct supervisors with complete authority over her employment. Plaintiff adds that supervisor harassment falls outside the FEHA only when it results from a completely private relationship unconnected to employment, which is not the case here. (Myers v. Trendwest Resorts, Inc. (2007) 148 Cal.App.4th 1403, 1420.) Plaintiff relies on newer authority reversing dismissal of a section 12940(j) claim on demurrer because the severity inquiry is factual and not appropriate at the pleading stage. (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200.) Plaintiff further argues that a single incident may suffice, that the inquiry turns on the totality of the circumstances, and that such claims are rarely resolvable even on summary judgment. (Gov. Code, § 12923, subds. (b), (c), (e); Miller v. Department of Corrections (2005) 36 Cal.4th 446, 462.)

Plaintiff further argues

that the conduct alleged against Defendant Shadfan was work-related. Plaintiff alleges she began as a volunteer while living in Defendant Shadfan's sober living facility, became a full-time employee assigned to CLEAR, and reported directly to Defendant Shadfan, who exercised complete authority over her assignments, schedule, compensation, and continued employment. Plaintiff alleges Defendant Shadfan groomed her by presenting himself as a mentor and

father figure, referring to her as sis, and providing gifts including a Louis Vuitton purse, a MacBook Air, and payment for her certification to deepen her dependence and the power imbalance. Plaintiff alleges Defendant Shadfan then used his authority to facilitate her sexual exploitation, coordinating with Defendant Dohren to route her by Uber from a West Hollywood club to a hotel where Defendant Dohren was waiting, and separately assaulting her at his home after she was given drugs and alcohol and blacked out. Plaintiff argues that although the assaults did not occur at the workplace, the misconduct shares a nexus to the employment because Defendant Shadfan and Defendant Dohren were her direct supervisors and among the highest-ranking employees, leaving her no safe avenue to report and in fear for her safety and job.

Plaintiff argues

that Defendant Shadfan's cited authorities are distinguishable. Plaintiff notes that Capitol City Foods found the conduct insufficiently work-related only because the supervisor had not abused his authority, while reaffirming that offsite conduct is actionable where a supervisor exerts and exploits his authority. (Capitol City Foods, Inc, supra, 5 Cal.App.4th 1042, 1048-1050.) Plaintiff also argues that Atalla involved only a personal friendship predating employment and inappropriate texts, whereas Defendant Shadfan leveraged his supervisory authority and trust to groom and exploit her. (Atalla, supra, 89 Cal.App.5th 294, 313-319.)

"All that is

required is a showing of a legally sufficient nexus between the employment relationship and the act of harassment. That is, as long as the harassment occurs in a work-related context, the employer is liable." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1051.) "Where the conduct at issue occurred off-site and/or during nonworking hours, the question of whether the employer is strictly liable for a supervisor's conduct tends to overlap with whether the conduct is sufficiently work related. Specifically, if the supervisor is, in some fashion, acting in his or her capacity as supervisor (or misusing his or her supervisory powers) when the conduct occurs—necessary for imputability to the employer—then the harassing conduct is inevitably going to be work related. (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 217.)

In Doe v Capital

Cities, the Court found that a Plaintiff who pleaded that a casting director who had worked closely with him for weeks to advance his career, then

directed him to come to the director's home, where the Plaintiff was drugged and gang-raped, had alleged a sufficient nexus between the employment relationship and the act of harassment. (Id. at 1050-1051.)

Here, the Complaint

alleges that Defendant Shadfan was Plaintiff's direct supervisor with "complete authority over Plaintiff's work assignments, schedule, compensation, and continued employment." (Complaint ¶ 60.) Furthermore, the Complaint alleges that Defendant Shadfan and Defendant Dohren engaged in direct coordination as Plaintiff's supervisors in a plan to sexually exploit her. (Complaint ¶ 84.) Therefore, the Court finds that the Complaint alleges that Defendant Shadfan used his complete authority over Plaintiff to coordinate a plan, which occurred outside of work but was based on the power dynamics created at work, to sexually exploit Plaintiff. Thus, the Court finds the Complaint adequately alleges a nexus between the employment relationship and the alleged harassment. While Defendant attempts to rely on Atalla, Atalla involved a motion for summary judgment and a much more developed factual environment, and thus, is distinguishable. (Atalla, supra, 89 Cal.App.5th 294, 307-308.) Consequently, the Court finds that Plaintiff has adequately pleaded a cause of action for hostile work environment.

Therefore, the

Court overrules the Demurrer as to the first cause of action.

Cause of Action 5 – Constructive Wrongful Termination

"A Tameny action

for wrongful discharge can only be asserted against an employer. An individual who is not an employer cannot commit the tort of wrongful discharge in violation of public policy; rather, he or she can only be the agent by which an employer commits that tort." (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 900.)

Here, Defendant

Shadfan was not Plaintiff's employer and thus cannot be held liable for constructive wrongful termination.

Therefore, the

Court sustains the Demurrer as to the fifth cause of action without leave to amend.

Cause of Action 11 – Breach of the Covenant of Good Faith
and Fair Dealing

Every contract contains an implied covenant of good faith and fair dealing, providing that no party to the contract will do anything that would deprive another party of the benefits of the contract. The implied covenant protects the reasonable expectations of the contracting parties based on their mutual promises. The scope of conduct prohibited by the implied covenant depends on the purposes and express terms of the contract. Although breach of the implied covenant often is pleaded as a separate count, a breach of the implied covenant is necessarily a breach of contract.” (Digerati Holdings, LLC v. Young Money Entertainment, LLC (2011) 194 Cal.App.4th 873, 885 (internal citations omitted). A breach of the covenant of good faith and fair dealing does not give rise to a cause of action separate from a cause of action for breach of the contract containing the covenant. (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 327) (stating that “where breach of an actual term is alleged, a separate implied covenant claim, based on the same breach, is superfluous.”)

Here, the Complaint does not allege any contract between Plaintiff and Defendant Shadfan. Consequently, the Complaint fails to allege a cause of action for breach of the covenant of good faith and fair dealing as to Defendant Shadfan. Furthermore, Plaintiff has not opposed the Demurrer as to cause of action eleven.

Therefore, the Court sustains the Demurrer as to the eleventh cause of action without leave to amend.

Motion
to Strike

California law authorizes a party's motion to strike a matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc., §§ 435; 436 subd. (a).) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc., § 436 subd. (b).) A motion to strike is used to address defects that appear on the face of a pleading or from a judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see also City

& County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 (motion may not be based on a party's declaration or factual representations made by counsel in the motion papers).) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.) California's policy of liberal construction applies to motions to strike. (Code Civ. Proc., § 452; see also Duffy v. Campbell (1967) 250 Cal.App.2d 662, 666 (noting that courts must resolve all reasonable doubts in favor of the pleading when considering a motion to strike).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc., § 436.)

Defendants request
that the Court strike the requests for punitive damages.

Punitive Damages

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A request for punitive damages may be made pursuant to Civil Code section 3294 subdivision (a), which provides that "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civil Code § 3294 subd. (a).)

Under the statute, malice is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others," and oppression is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Code Civ. Proc. § 3294(c)(1), (c)(2).) Although not defined by the statute, despicable conduct refers to circumstances that are base, vile, or

contemptible. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) Also, “[u]nder the statute, malice does not require actual intent to harm...Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences.... [Citation.]” (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.)

To survive a motion to strike punitive damages, the Complaint must contain “specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious.” (Today’s IV, Inc. v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1193.)

Here, the Complaint alleges that Defendant Shadfan engaged “in sexual intercourse with the severely intoxicated and incapacitated Plaintiff without her conscious consent.” (Complaint ¶ 89.) Consequently, the Court finds the Complaint adequately pleads the malice required for a finding of punitive damages.

Therefore, the Court denies the Motion to Strike.